

[doc. web n. 9941795]
Provision of September 14, 2023
Register of Provisions
No. 419 of September 14, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Ginevra Cerrina Feroni, Vice President,
Dr. Agostino Ghiglia, and Attorney Guido Scorza,
members, and Dr. Claudio Filippi, Deputy
Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data, and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legislation to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal
data, as well as the free movement of such
data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's
Regulation No. 1/2000 on the organization and
functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

REPORTING Prof. Ginevra Cerrina Feroni;

WHEREAS

1. Introduction.

Dr. XX has reported to this Authority that he has
exercised the rights referred to in Articles 15 to
22 of Regulation (EU) 2016/679 (hereinafter, the
"Regulation") against the Health Authority
of South Tyrol (hereinafter "Authority"), where he

works as a medical director, and has not received an appropriate response.

In particular, the complainant, having been suspended from practicing his profession for failing to undergo vaccination against Sars-Cov-2 and having the matter received wide coverage in the local press, had exercised the rights referred to in Articles 15, 16, 17, and 19 of the Regulation against the Authority in order to obtain information regarding the lawfulness and correctness of the processing of his personal data carried out by the Authority itself in the context of the verification activities referred to in Article 4 of Decree Law No. 44 of April 1, 2021, concerning "Vaccination Obligations for Health Professionals and Health-Related Operators," without receiving the due response.

With note prot. n. XX, dated XX, this Authority, pursuant to Article 15 of Regulation No. 1/2019, concerning the internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor for the protection of personal data (doc. web n. 9107633), invited the Authority, as the data controller, to comply with the request to exercise the rights presented by the data subject, providing a response to him and asking to inform the Authority about the determinations adopted.

2. The investigative activity.

On XX, the Authority transmitted to the Guarantor the note prot. n. XX with which it provided a response to the data subject. In the aforementioned note, the Authority, while apologizing to the data subject for what occurred, intended to clarify that the "delayed response" was caused by "an internal organizational misunderstanding" as "the request had not been forwarded to the privacy steering committee of the health authority, the steering committee responsible for managing such requests, as can be inferred from what is published on the [...] Home page and related documentation prepared for the exercise of the rights mentioned above."

The Authority also intended to clarify the following:

- "The Health Authority has made available to employees on the dedicated company intranet privacy page, the information regarding the "Management of Article 4 of Decree Law 44/2021 Regarding Employee Vaccination," information that, following the update of Article 4, has been removed given the role assigned by current regulations to professional orders";
- "It was indicated that the Health Authority of South Tyrol, in its capacity as Data Controller, informs its Collaborators exercising health professions or of

health interest about the ways in which such information is subject to processing to comply with the vaccination obligation provided for by Article 4 of Decree Law 44/2021. This article provides for the performance of specific data processing activities by the following subjects, each of whom is an autonomous Data Controller [...]"

- "In this specific case, we understand that the Prevention Department with Prot. No. XX had communicated the act of ascertaining the non-compliance with the vaccination obligation [to the data subject] as well as, as provided by the then current regulations, to the Professional Order and to his employer. The health authority itself, through the Director notifications, would proceed with the necessary actions regarding the employees who were not vaccinated.

4. Conclusion on the legality of the processing.

In light of the above, it is evident that the processing of personal data related to employee vaccination in the healthcare context is governed by specific legal provisions that establish vaccination as a fundamental requirement for practicing healthcare professions. The legislative framework mandates the verification of vaccination status through a structured system involving various institutional actors, ensuring compliance with data protection regulations.

The Company's failure to provide defensive memoranda to the Authority, as well as the lack of documentation justifying the non-vaccination of the employee in question, indicates a breach of the obligations set forth in the applicable regulations. The Authority, therefore, must take appropriate measures to address this violation and ensure that the rights of the data subjects are upheld in accordance with the GDPR and national legislation.

5. Recommendations.

It is recommended that the Company promptly comply with the requests made by the Authority and provide the necessary documentation to rectify the situation. Additionally, the Company should implement measures to ensure that all employees are informed of their rights regarding personal data processing and vaccination requirements, thereby fostering a culture of compliance and transparency within the organization.

The Company is also advised to review its internal policies and procedures related to data protection and employee health requirements to prevent future occurrences of similar issues.

****Checks and only against the interested parties****

with respect to whom the absence of the aforementioned professional requirement had been concretely established, immediately communicated this to the interested party, the employer, and the relevant professional Order, determining, with the adoption of the verification act, the suspension from the interested party's work activity. Finally, the relevant professional Order immediately communicated the suspension to the employer as well, fulfilling the publicity obligations on the related professional register (cf. art. 4, paragraphs 5 and 6).

In this regard, it should be emphasized that the right of access is granted to the interested party "to be aware of the processing and verify its lawfulness" (Cons. No. 63 of the Regulation; see in particular a recent provision of the Guarantor in the labor sector, provision No. 98 of March 24, 2022, doc web No. 9763051).

Based on the constant jurisprudence of legitimacy, moreover, the right of access to one's personal data, even within the employment relationship, aims to "guarantee the protection of the dignity and privacy of the interested party to whom the supranational legal system also grants the right to verification [of the lawfulness and correctness of the processing] ratione temporis of the occurrence of insertion, permanence, or removal of data, regardless of the circumstance that such events had

already been brought to the attention of the interested party by other means" (see Court of Cassation December 14, 2018, No. 32533).

Although the Company has stated that the processing of personal data relating to the interested party has been carried out within the framework of the aforementioned sector provisions (cf. art. 4, of the law decree April 1, 2021, No. 44, in the text prior to the amendments of the law decree November 26, 2021, No. 172, as well as art. 8, paragraph 2, law decree March 24, 2022, No. 24 which has maintained the vaccination obligation for such categories of workers until December 31, 2022) – aspects that are not, however, subject to evaluation in this provision – it is, however, evident from the records that, although due to a mere organizational oversight, the Company responded to the request of the complainant on XX, only on XX, and therefore well beyond the one-month deadline provided by the provision and only following the invitation made by this Authority.

Therefore, based on the elements acquired and the facts emerged following the investigative activity, it is established that the Company, albeit for contingent reasons, did not provide timely feedback to the interested party within the terms and in the manner provided by the Regulation (cf. Cons. 59 and art. 12 of the Regulation).

****4. Conclusions.****

In light of the evaluations mentioned above, it is noted that the statements made by the Company during the investigation – the truthfulness of which may be subject to accountability pursuant to art. 168 of the Code – although deserving of consideration, do not allow for overcoming the observations notified by the Office with the initiation act of the procedure and are insufficient to allow for the archiving of this procedure, as none of the cases provided for by art. 11 of the Guarantor Regulation No. 1/2019 apply.

Therefore, the preliminary assessments of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Company is noted, for having failed to timely respond to the request for the exercise of rights made by the interested party on XX, having provided the due feedback well beyond the one-month deadline provided by that provision and only following the invitation made by this Authority, in violation of art. 12, paragraph 3, of the Regulation.

The violation of the aforementioned provisions makes applicable the administrative sanction provided for by art. 83, paragraph 5, of the Regulation, pursuant to arts. 58, paragraph 2, letter i), and 83, paragraph 3, of the same Regulation, as also recalled by art. 166, paragraph 2, of the Code.

In this context, considering that the conduct has exhausted its effects, the conditions for the adoption of further corrective measures pursuant to art. 58, paragraph 2, of the Regulation do not apply.

****5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, paragraph 2, letter i and 83 of the Regulation; art. 166, paragraph 7, of the Code).****

The Guarantor, pursuant to arts. 58, paragraph 2, letter i) and 83 of the Regulation as well as art. 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to article 83, in addition to the [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to article 166, paragraph 7, of the Code" (art. 16, paragraph 1, of the Guarantor Regulation No. 1/2019). In this regard, considering art. 83, paragraph 3, of the Regulation, in the specific case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by art. 83, paragraph 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by art. 83, paragraph 2, of the Regulation.

In relation to the aforementioned elements, the particular sensitivity of the data processed concerning the claimant's failure to vaccinate, resulting in the suspension from service, has been considered.

Additionally, the harm suffered by the interested party following the extensive media coverage of the news has been duly taken into account. In particular, with the lack of timely response to the exercise of rights, which occurred only after the intervention of the Guarantor, the Company did not facilitate, in

accordance with the principle of accountability, the exercise of such rights necessary to make the interested parties aware of the processing and to verify its lawfulness.

On the other hand, it has been considered that the episode involved only one interested party and was caused by a misunderstanding at the organizational level; the incident occurred during a particularly hectic and critical phase in terms of the organization and management of institutional activities, in an emergency context; albeit belatedly, the Company nonetheless provided the necessary information to the interested party regarding the treatments concerning him and clarified the reasons why certain requests could not be accepted. The previous violations committed by the data controller pursuant to Article 58 of the Regulation cannot be considered specific precedents "relating to the same subject" (Article 83, paragraph 2, letter i) of the Regulation) concerning the case at hand.

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the monetary sanction at €10,000 (ten thousand) for the violation of Article 12, paragraph 3, as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

Taking into account the resonance that the incident has had in the local press and considering that the processing involved particularly sensitive data, such as that of the claimant's failure to vaccinate, it is also deemed appropriate to apply the ancillary sanction of publication of this provision on the Guarantor's website, as provided for by Article 166, paragraph 7 of the Code and Article 16 of the Guarantor's Regulation No. 1/2019.

Finally, it is noted that the conditions of Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the Health Authority of South Tyrol for violation of Article 12, paragraph 3 of the Regulation as stated in the reasoning;

ORDERS

the Health Authority of South Tyrol - Suedtiroler Sanitaetsbetrieb, represented by the legal representative pro tempore, with registered office at Via Thomas Alva Edison 10 D - 39100 Bolzano/Bozen (BZ) Tax Code 00773750211 to pay the sum of €10,000 (ten thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning.

It is stated that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

ORDERS

the aforementioned Company, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €10,000 (ten thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981;

DISPOSES

pursuant to Article 166, paragraph 7, of the Code, the publication of this provision on the Guarantor's website, considering that the conditions of Article 17 of the Guarantor's Regulation No. 1/2019 are met.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, it is possible to appeal this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, September 14, 2023

THE VICE PRESIDENT
Cerrina Feroni

THE REPORTER

THE VICE SECRETARY GENERAL

Filippi